Anti-Fraud, Bribery and Corruption Policy

1 Purpose and zero tolerance

Girl Pride Africa Kenya (GPAK) does not tolerate fraud, bribery or corruption in any form, by any person acting for GPAK, in any of GPAK's programmes or funded projects. This policy sets out what fraud, bribery and corruption look like in GPAK's work, the controls GPAK uses to prevent them, and what happens when they are suspected.

2 Scope

This policy applies to GPAK staff (the Director, the Programs Officer, the Public Health and Research Officer, the Community Engagement Officer, the Finance Officer and the Administrative Assistant), Advisory Committee members, mentor mothers, community volunteers, interns, consultants, contractors, suppliers and any partner handling GPAK funds or working on a GPAK activity.

3 Legal basis

Section 9 of the Bribery Act, No. 47 of 2016 requires every private entity to put in place procedures, proportionate to its size, scale and operations, to prevent bribery and corruption. This policy, read together with POL-09 (Procurement Policy), POL-08 (Financial Management Policy and Procedures) and the payment and authorisation rules they set out, is GPAK's Bribery Act section 9 procedure. GPAK also has duties under the Proceeds of Crime and Anti-Money Laundering Act, 2009 and the Prevention of Terrorism Act, 2012 (section 7).

4 Definitions

Term	Meaning
Fraud	Deliberately deceiving GPAK, a funder, a school, a facility or a participant to gain a benefit, or causing GPAK to suffer a loss, whether or not money changes hands.
Theft	Taking GPAK's money, stock (for example sanitary pads, starter kit items or food support) or property without authority.
Bribery	Offering, giving, requesting or accepting anything of value to influence a decision improperly, for example to enrol a participant who does not meet the eligibility criteria, to approve a payment, or to win a supply contract.
Facilitation payment	A small payment to a public official to speed up a routine, lawful action. GPAK does not make facilitation payments; if one is demanded, the person refuses, records the demand in writing and reports it under section 8.
Kickback	Part of a payment returned to the person who authorised or arranged it, for example a supplier or school paying part of an invoice back to the staff member who placed the order.
Nepotism	Giving a relative or close associate an unfair advantage in recruitment, a community role, participant selection or a supply contract, in place of an open and fair process (POL-07, Conflict of Interest Policy).
False claim	A claim for an expense, an allowance or a stipend that was not incurred, or was incurred for a different amount or purpose.
Ghost participant	A person recorded in a register as an enrolled participant, mentor mother or community volunteer who does not exist, or who is not actually receiving the recorded support, so that a payment can be claimed in her name.
Inflated support or transport claim	Claiming a transport, childcare, school fees, food or other support amount higher than the rate PRG-01 sets, or claiming it more than once for the same participant or visit.
Collusion with suppliers	Arranging with a supplier, school or facility to submit false, inflated or non-competing quotations so that the quotation or panel-evaluation rule in POL-09 is defeated.

5 Fraud, bribery and corruption risks in GPAK's activities

This table sets out where fraud, bribery or corruption risk is highest across GPAK's regular activities and the control GPAK uses against it.

Risk area	Example	Control
School fees and supplies	Fees are paid for a term a girl did not attend, or a fee or supplies receipt is inflated.	Payment made directly to the school against the F10 direct support assessment and approval, using the school's own invoice; the Finance Officer checks the invoice against the school's normal fee schedule before payment.
Sanitary pad distribution	Pads recorded as distributed to participants are instead kept back or sold.	Distribution recorded against the participant register at the time of handover, with the recipient's acknowledgement; the Programs Officer spot-checks a sample of records against participants.
Vocational starter kits	A starter kit is issued to someone who did not complete training, or a kit is issued twice.	Kit issue only against F14 and the training completion record; the Administrative Assistant keeps a kit issue log the MEAL lead checks against the training register.
Food support	Food support is claimed for a participant who is not eligible, or for longer than approved.	Food support is time-limited and approved against F10, linked to the individual support plan; the Finance Officer checks claims against the approval before payment.
Participant transport and childcare	A transport or childcare claim is made for a visit that did not happen, or claimed more than once.	Payment made only against a signed referral or support-plan record (F8, F9); the mentor mother's or facility's record shows attendance before payment; the MEAL lead's monthly data-quality check cross-checks attendance against payment.
Mentor mother and community volunteer stipends	A stipend is paid to a mentor mother or community volunteer who has stopped the role, or paid twice in the same period.	Stipends paid only from the Programs Officer's current roster; the Finance Officer checks the roster before each payment run; payments go only to numbers in the restricted payee register.
M-Pesa	A payment is sent from a personal phone line, or to a number that does not belong to the intended recipient.	All programme payments go through GPAK's organisational bank account or M-Pesa business account, never a personal line, to a number in the restricted payee register.
Petty cash	Petty cash is used above the single-payment limit, or the float is topped up without a count.	Float capped at KES 10,000, single payment capped at KES 2,000, monthly surprise count by someone other than the cash holder.
Per diems	A per diem is claimed for a meeting or activity that did not take place, or claimed twice.	Claims are countersigned against the activity record before payment; the Finance Officer checks for duplicate claims in the same period.
Duplicate or ghost participants	The same girl is registered twice under different participant codes, or a person recorded in a register does not exist, so that support is paid twice or paid for someone who is not real.	The MEAL lead checks a new enrolment against the identity key and existing registers before issuing a new participant code; periodic verification checks confirm a sample of participants exist and are receiving the recorded support.
Supplier collusion	A supplier and a staff member arrange false, inflated or non-competing quotations so the quotation or panel-evaluation rule in POL-09 is defeated.	Quotations are requested independently by the person handling procurement, not the supplier; the evaluation panel checks quotations for signs of common authorship or pricing; a conflict-of-interest declaration is completed before a procurement decision (POL-07).

Risk area	Example	Control
Facility or school staff asking for payment	A facility or school worker asks a participant, mentor mother or community volunteer for an unofficial payment for a service that should be free.	The person refuses, does not pay, records what was asked in writing and reports it immediately under section 8; GPAK raises it with the facility's or school's leadership and, if unresolved, with the relevant county office, without exposing the participant to retaliation.

6 Gifts and hospitality

A staff member, Advisory Committee member, mentor mother or community volunteer may accept or offer a gift or hospitality connected to GPAK's work only where its value does not exceed KES 2,000 and accepting it does not, and could not appear to, influence a decision such as participant selection, a referral, a procurement decision or a stipend. A gift above this value is declined, or where declining would cause offence, is handed to the Finance Officer and recorded. Cash gifts are never accepted.

The Finance Officer keeps a gifts register recording: the date; the gift or hospitality offered; its estimated value; who gave and received it; and what was done with it (accepted within the limit, declined, or handed in). The register is reviewed at each Advisory Committee meeting alongside the aggregate safeguarding and complaints report.

7 Anti-money laundering and counter-terrorism financing

GPAK knows who it receives funds from and pays. Funds are accepted only from identified, legitimate funders, donors and partners; GPAK does not accept cash from an unknown or unidentifiable source. A supplier or partner handling GPAK funds above the thresholds in POL-09 is a known, identifiable organisation or individual with a verifiable address and contact details. Any transaction that appears designed to disguise the source, ownership or destination of funds, or that involves a person or entity GPAK cannot identify, is refused and reported under section 8. This reflects GPAK's duties under the Proceeds of Crime and Anti-Money Laundering Act, 2009 and the Prevention of Terrorism Act, 2012.

8 Reporting a suspicion

Anyone who suspects fraud, bribery or corruption reports it under POL-06 (Whistleblowing Policy): to the Director, or to the Chair of the Advisory Committee if the Director is involved. A report can be made in writing, by phone or anonymously. No one who reports a genuine suspicion in good faith is penalised for reporting it, whether or not the suspicion is later substantiated.

9 Investigation and response

1. The report is acknowledged and, where the reporter can be identified, kept informed as the handling timeline in POL-06 sets out.
2. The Director, or the Chair of the Advisory Committee where the Director is involved, decides who investigates, and does not use anyone implicated in the suspicion.
3. Interim steps are taken while the investigation continues where needed, such as suspending a payment, a signatory right or a role.
4. The investigation establishes the facts, records its findings and reaches a conclusion.
5. The outcome is reported to the Advisory Committee, and to the Director unless the Director is implicated.

10 Notification to funders

Where a credible suspicion of fraud, bribery or corruption affects a funder's funds, GPAK notifies any funder whose funds are affected within 5 working days of the suspicion being reported, or sooner if a grant agreement requires, and provides further information as the investigation progresses, without exposing a participant's identity or health status.

11 Recovery, disciplinary and legal action

Where an investigation substantiates fraud, bribery or corruption, GPAK:

- Recovers the funds involved where recovery is possible.
- Takes disciplinary action under POL-10 (Human Resources and Volunteer Policy), up to and including dismissal or ending a community-role agreement.
- Ends a supplier's or partner's relationship with GPAK where that supplier or partner is responsible.
- Reports the matter to the Ethics and Anti-Corruption Commission (EACC) or the police where the conduct may be criminal.
- Updates the risk register (PRG-06) and this policy's controls to reduce the chance of a repeat.

12 Training

Every new staff member, Advisory Committee member, mentor mother and community volunteer reads and signs this policy before first handling GPAK funds or participant support, as part of the vetting and induction checklist in POL-10. The Finance Officer refreshes staff and community roles on the risk table in section 5 at least once a year and whenever a new payment type or procurement route is introduced.

Approval and review

Item	Detail
Policy owner	Director
Approved by	Advisory Committee
Applies to	All GPAK staff, Advisory Committee members, volunteers, mentor mothers, community volunteers, interns, consultants, contractors and partners working on GPAK activities
Review	Every two years, or earlier if the law, a funder requirement or an incident review shows that a change is needed.

Public copy. Internal forms, annexes and signature pages are kept on file by GPAK and are available on request.